

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: June 11, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

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**PREGRANTS AND TENTATIVE RULINGS
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LINE

1

CHALLENGER v. BLANKENSHIP, et al
CU25-09577

Demurrer by Defendant ARTHUR EARL BLANKENSHIP to Plaintiff's Complaint

TENTATIVE RULING

The demurrer filed by Defendant ARTHUR EARL BLANKENSHIP ("ARTHUR", to differentiate him from another defendant with the same last name), also filed on behalf of named Defendant the Revocable Trust of Arthur Earl Blankenship (the "Trust"), is sustained as to all causes of action, for both uncertainty and failure to state a cause of action.

More specifically:

Actions seeking recovery against trust assets must be brought against the trustee in the trustee's representative capacity. Probate Code §18004.

See also Green v. Cent. Mortg. Co. (N.D.Cal. 2015) 148 F.Supp.3d 852, 864 ["In California, a trust is not a legal entity and has no capacity to sue or be sued"].

The demurrer filed on behalf of the Trust is therefore sustained, without leave to amend.

As to defendant ARTHUR, as both an individual and trustee of the Trust:

1st cause of action for dependent adult (financial) abuse

The facts to support a statutorily-based cause of action must generally be pled with particularity. Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 407 [elder neglect cause of action, which like financial elder abuse, is statutory in nature].

Plaintiff's complaint admits she was receiving and relying upon "vital Social Security disability benefits" for her survival. General allegations regarding ARTHUR's involvement in directing the creation by another defendant, THOMAS KABRICK PORTA ("PORTA") of a Special Needs Trust ("SNT") for assets Plaintiff had acquired allege only that this was "wrongful" or "fraudulent", and fail to allege specific facts necessary to support a dependent adult financial abuse cause of action.

PORTA also had sole and absolute discretion in determining what disbursements were to be made on behalf of the beneficiary.

In its most basic sense, a special needs trust (SNT) is a trust in which the trustee has sole and absolute discretion about the kind of disbursements to be made. As

such, the administration of an SNT is, in many ways, no different from the administration of a trust for a minor, a spendthrift, or anyone else who cannot make decisions about the use of funds held on their behalf. The trustee must invest the assets, maintain liquidity, collect receipts, decide which kind of disbursements to make (and make them), and keep the books. 2 Special Needs Trusts: Planning, Drafting and Administration (CEB June 2024 Updated) §15.1, pp. 15-2 and 15-3.

The other allegations in the complaint are likewise conclusory and/or uncertain as to what ARTHUR did that constituted wrongful or fraudulent conduct.

2nd cause of action for breach of fiduciary duty

“The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach.” Knox v. Dean (2012) 205 Cal.App.4th 417, 432.

A fiduciary relationship is either imposed by law or undertaken by agreement. Oakland Raiders v. National Football League (2005) 131 Cal.App.4th 621, 632.

Plaintiff’s complaint does not allege any basis for a fiduciary relationship on the part of ARTHUR towards her.

Plaintiff’s opposition claimed that the “aiding and abetting” allegations against ARTHUR put him on liability for the acts of PORTA.

As trustee of the SNT created for Plaintiff, PORTA would have had some fiduciary duties to Plaintiff. But the specifics of the alleged violation(s) of such duties are missing from the complaint.

3rd cause of action for civil conspiracy

“Conspiracy is not a cause of action, but a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration.” Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503, 510-511.

Plaintiff’s opposition conceded that civil conspiracy is not an independent tort (i.e., not a separate cause of action).

Even if viewed only in conjunction with the other pled causes of action, insofar as the alleged conspiracy involved a breach by PORTA of his fiduciary duties as a trustee of the SNT, civil conspiracy is not a theory that can be used against a party such as ARTHUR, who had no fiduciary duty to Plaintiff.

Civil conspiracy is “a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration. [Citation.] By participation in a civil conspiracy, a coconspirator effectively adopts as his or her own the torts of other coconspirators within the ambit of the conspiracy. [Citation.] In this way, a coconspirator incurs tort liability co-equal with the immediate tortfeasors.” (Applied Equipment Corp. v. Litton Saudi Arabia Ltd., supra, 7 Cal.4th at pp. 510–511.) “By its nature, tort liability arising from conspiracy presupposes that the coconspirator is legally capable of committing the tort, i.e., that he or she owes a duty to plaintiff recognized by law and is potentially subject to liability for breach of that duty.” (Id. at p. 511.) Following Applied Equipment Corp., this court held in Kidron v. Movie Acquisition Corp. (1995) 40 Cal.App.4th 1571 [47 Cal. Rptr. 2d 752] that “[a] nonfiduciary cannot conspire to breach a duty owed only by a fiduciary.” (Id. at p. 1597; accord, Everest Investors 8 v. Whitehall Real Estate Limited Partnership XI (2002) 100 Cal.App.4th 1102, 1109 [123 Cal. Rptr. 2d 297].) American Master Lease LLC v. Idanta Partners, Ltd. (2014) 225 Cal.App.4th 1451, 1473-1474.

In addition, “A conspiracy generally requires agreement plus an overt act causing damage.” Id. at 1474.

Plaintiff’s complaint alleged no specific overt act by ARTHUR that caused her damage.

4th cause of action for conversion

The elements of a conversion cause of action are “(1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” Lee v. Hanley (2015) 61 Cal.4th 1225, 1240.

The complaint alleges only in vague and conclusory terms the conversion of an inheritance, even as it acknowledges that the inheritance funded the SNT. This is insufficient to sufficiently allege conversion by a wrongful act or disposition of property rights.

5th cause of action for intentional infliction of emotional distress

The elements of an intentional infliction of emotional distress cause of action include extreme and outrageous conduct by the defendant causing severe emotional distress. Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 (superseded by statute on other grounds, as stated in *Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 699).

There is no bright-line test for outrageousness, which is dependent on the total circumstances, but sometimes it can be determined as a matter of law at the pleading stage.

There is no bright line standard for judging outrageous conduct and " . . . its generality hazards a case-by-case appraisal of conduct filtered through the prism of the appraiser's values, sensitivity threshold, and standards of civility. The process evoked by the test appears to be more intuitive than analytical . . . ' [Citation.]" (KOVR-TV, supra, 31 Cal. App. 4th at p. 1028.) Even so, the appellate courts have affirmed orders which sustained demurrers on the ground that the defendant's alleged conduct was not sufficiently outrageous. (See, e.g., Ankeny v. Lockheed Missiles & Space Co. (1979) 88 Cal. App. 3d 531, 536-537 [151 Cal. Rptr. 828].) Id. at 494.

The vague and conclusory allegations against ARTHUR fail to allege sufficiently outrageous conduct to support this cause of action.

6th cause of action for assault and battery

The elements of assault and battery are similar, although assault is more of an attempted or threatened battery. Both require non-consensual threatened (assault) or actual (battery) touching, that would have caused a reasonable person to be offended and that the plaintiff was harmed. So v. Shin (2013) 212 Cal.App.4th 652, 668-669.

Plaintiff's complaint contains general allegations that ARTHUR committed "physical assaults and an attempted sexual assault", but provided no dates or circumstances for any of the alleged assaults and/or batteries.

Plaintiff's opposition requested "leave to amend to provide additional specificity regarding the dates, locations, and circumstances of the physical and sexual assaults", while at the same time claiming that because she is a dependent adult with disabilities, traumatized by the assaults, "requiring her to plead with greater specificity at this stage would be unjust".

A defendant accused of assault and/or battery is entitled to some information to identify the alleged assaults, including dates, locations and circumstances.

7th cause of action for fraudulent concealment

The elements of a cause of action for fraudulent concealment include concealment by a defendant with a duty to disclose material facts to the plaintiff. Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.

As is required for any fraud-based cause of action, the elements of a cause of action for fraudulent concealment must be pled with specificity. Linear Technology Corp. v. Applied Materials, Inc. (2007) 152 Cal.App.4th 115, 132.

The duty to disclose element of fraudulent concealment often arises out of a fiduciary relationship between the plaintiff and defendant. Doe v. Superior Court (2015) 237 Cal.App.4th 239, 244.

Plaintiff's complaint does not plead any specific facts supporting a fiduciary relationship on the part of ARTHUR. All it contains are conclusory allegations, largely regarding the actions of PORTA, which aside from the conclusory labels prescribed by Plaintiff are not necessarily inconsistent with his duties as trustee of the SNT, and thus may not even constitute violations of PORTA's fiduciary relationship with Plaintiff.

The demurrer by ARTHUR to Plaintiff's (initial) complaint is therefore sustained as to all of these causes of action, with leave to amend as to all but the 2nd cause of action for breach of fiduciary duty and the 3rd cause of action for civil conspiracy, but also subject to another concern the court has with this litigation, discussed in detail below.

In general, while most adults have capacity to bring a lawsuit, a person who lacks legal capacity to make decisions or one for which a conservator has been appointed does not. Instead, such a person can appear in a civil action only by a conservator or a guardian ad litem. C.C.P. §372(a)(1).

Subsection (a)(2)(A) gives the court authority to appoint a guardian ad litem for an adult "who lacks capacity to make decisions" when the judge deems it "expedient" to do so.

A guardian ad litem may be appointed in any case when it is deemed by the court in which the action or proceeding is prosecuted, or by a judge thereof, expedient to appoint a guardian ad litem to represent the minor, person who lacks legal capacity to make decisions, or person for whom a conservator has been appointed, notwithstanding that the person may have a guardian or conservator of the estate and may have appeared by the guardian or conservator of the estate.

A "dependent adult" may not always "lack capacity to make decisions". However, there is some evidence already before the court that suggests that Plaintiff may qualify as both, and thus may require the assistance of another to properly pursue her claims.

The court notes that Plaintiff's sister Rachele Eschenburg filed a declaration in a different case, one filed by PORTA, Case No. pr26-000242 to be relieved from his position as successor trustee to the SNT. Eschenburg's declaration was as a proposed guardian ad litem, because Plaintiff "is a dependent adult who needs assistance navigating complex multi-case litigation", who although "capable of making decisions about her life" still "requires support in managing the procedural and administrative demands of this legal

matter”. But since Eschenburg is not a licensed attorney, if she were to file an application for appointment as guardian ad litem in the general civil case at hand, she would have had to retain one to serve as Plaintiff’s guardian ad litem. The same would be true of anyone other person who is not a licensed California attorney who might file a petition to be appointed guardian ad litem for Plaintiff in the case at hand. J.W. v. Superior Court (1993) 17 Cal.App.4th 958, 968 [“We conclude that neither the common law nor guardianship statutes sanction an exception to the State Bar Act prohibition against the unauthorized practice of law in favor of guardians acting for their wards”]; Torres v. Friedman (1985) 169 Cal.App.3d 880, 888 [“ The withdrawal of counsel as distinguished from the substitution of qualified counsel leaves the guardian ad litem in the untenable position of perhaps committing a misdemeanor: practicing law without a license”]; In re Gordon (1980) 108 Cal.App.3d 907, [father who was not a licensed attorney could not act as co-counsel with public defender in representing son in criminal proceedings].

The court therefore will separately issue an Order to Show Cause to Plaintiff as to why the court should not find her to lack capacity to represent herself in the case at hand. If the court at this evidentiary hearing makes the determination that Plaintiff lacks capacity, to proceed further in this action, such as by filing an amended complaint, Plaintiff would first need to have a guardian ad litem apply for appointment, and be appointed. Such an applicant, if not a licensed California attorney, would as a condition of appointment be required to retain a licensed California attorney. Such an attorney filing an amended complaint would be subject to the standard set forth in C.C.P. §128.7(b) of being held to have certified to the best of their knowledge, information and belief, formed after an inquiry reasonable under the circumstances, that the amended complaint (1) was not being presented primarily for an improper purpose; (2) that the claims are warranted by existing law or nonfrivolous argument for extension, modification or reversal of existing law; and (3) that the allegations and other factual contentions have evidentiary support, or are likely to after reasonable opportunity for further investigation or discovery.

To allow for sufficient time to complete the OSC process, and thereafter for Plaintiff or any person interested in applying to serve as her guardian ad litem (if the court at OSC hearing so determines) to consult with and/or retain counsel, ARTHUR’s demurrer to Plaintiff’s complaint is sustained, as to all causes of action other than the 2nd cause of action for breach of fiduciary duty and the 3rd cause of action for civil conspiracy, with leave to amend within 90 days.

9: 30 a.m. CALENDAR

LINE

2

**IN THE MATTER OF P.O.A. OF WILLIE D. TURNER, SR.
FPR051895**

Order to Show Cause to Willie D. Turner, Jr.

PREGRANT ORDER

Counsel and parties to appear. Willie D. Turner, Jr. to appear for his Order to Show Cause. Remote appearances are approved. The court notes that an accounting was filed and is calendared for July 20, 2026 at 9:30 a.m. in Department 22.

LINE

3

**IN RE THE ESTATE OF KENNETH JAY BRANN, DECEASED
PR23-00419**

Review/Compliance Hearing Re: Filing the Petition for Final Distribution

PREGRANT ORDER

Counsel and parties to appear. Remote appearances are approved.

LINE

4

**IN RE THE ESTATE OF HARRY JOSEPH RALSTON, SR., DECEASED
PR24-00638**

Second Amended Report of Waiver of Accounting and Petition for Final Distribution and For Allowance of Statutory Compensation to Attorney For Ordinary Services

PREGRANT ORDER

The court continued this matter to allow the petitioner to address the issues which have all been resolved now by the Second Amended Petition. Therefore, absent any objections the court intends to find the following:

The court finds all notices have been given as required by law. The petition is granted as prayed except that release of liability and discharge shall be ordered only upon the filing of the Ex Parte Petition for Final Discharge and Order once assets are distributed pursuant to Probate Code section 11753. All future compliance hearings are vacated.

LINE

5

**IN RE THE ESTATE OF DUNCAN JOSE MACKENZIE, DECEASED
PR25-00372**

Report of Administrators and Petition for Payment of Compensation to Attorney, For Reimbursement of Advanced Costs to Attorney, and For Final Distribution on Waiver of Account

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed except that release of liability and discharge shall be ordered only upon the filing of the Ex Parte Petition for Final Discharge and Order once assets are distributed pursuant to Probate Code section 11753. All future compliance hearings are vacated.

LINE

6

**THE LORRAINE MILLSAP BROWN SEPARATE PROPERTY REVOCABLE
TRUST
PR25-00553**

Status Review Re Mediation and Trial Setting

PREGRANT ORDER

Counsel and parties to appear. Remote appearances are approved.

LINE

7

**IN THE MATTER OF THE GORDON W. LONEY TRUST
PR25-00648**

Review/Compliance Hearing

Petition to Ratify Sale of Trust Property

Objection to Petition To Ratify Sale of Trust Property and Request for Removal of Trustee

Declaration of Matthew R. Lucas In Support of Objection to Petition To Ratify Sale of Trust Property and Request for Removal of Trustee

Response to Objection to Petition to Ratify Sale of Trust Property and Request for Removal of Trustee

PREGRANT ORDER

The court has reviewed the Objector's Status Report. Counsel and parties may appear via Zoom, in person, or by CourtCall.

**IN RE THE ESTATE OF JOSEPH DESLIPPE MICKELSEN, DECEASED
PR26-00046**

Petition for Letters of Administration with Authorization to Administer Under the Independent Administration of Estates Act (Filed By Jeffrey Leslie Mickelsen)

Objection to Petition for Probate and Issuance of Letters, Request to Appoint Representative Named In Trust

Amended Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act (Filed By Taunya Brookshire)

PREGRANT ORDER

The court continued this matter from April 27, 2026 so that both competing petitions can be heard concurrently and to allow Petitioner, Jeffrey Leslie Mickelsen to address the issues with his petition. However, nothing has been filed by since the last hearing date by Petitioner, Jeffrey Leslie Mickelsen. An amended petition was filed by Tanya Brookshire, which has one issue listed below. Amended Petitions replace all prior petitions for all purposes.

The court on its own motion continues this hearing to August 20, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the parties shall resolve the following issues as it relates to their own petition or objection:

As to the Petition filed by Jeffrey Leslie Mickelsen:

1. There is no proof of publication on file. (Prob. Code § 8124.)
2. There is no completed Duties and Liabilities of Personal Representative form on file. (Prob. Code § 8404.)
3. The Notice of Petition to Administer the Estate Form DE-121 states the petitioner's name as the decedent on item 1.
4. Caption: The caption in the petition and the notice provide the email address of the person who signed the proof of service which is not acceptable. The petitioner must provide his own email address or not provide one, if none exists. Providing an email is optional, but if the petitioner does not have one, then no email needs to be provided.
5. Petition, item 3.e: The petition is predicated on bond waivers. However, the bond waivers are not on the Mandatory Judicial Council Form DE-142/DE-111. In addition, the decedent was survived by a spouse who would be entitled to notice

and is an heir of the estate. As such, the surviving spouse must also sign and file a bond waiver. Absent bond waivers by all heirs, the court will set bond.

6. Petition, item 3.h: Either (3) or (4) must be marked.
7. Petition, item 5.a: Either (3) or (4), and either (7) or (8) must be marked.
8. Petition, item 5.b: Either was or was not must be marked.
9. Petition, item 8: The petitioner did not list himself, relationship to the decedent, age and address.
10. Petition, item 9: The petition was not signed by the self-represented litigant as instructed in the petition.
11. The proof of service is not sufficient as provided. In addition, it is not clear if all persons entitled to notice were given proper notice as the petition mentions the possibility of a will and a trust with a trustee who were not listed in the petition. (Prob. Code §8110, Solano Local Rule 7.51a.)
12. The document attached to the petition identified as “Attachment 2” seeks relief which cannot be granted through this proceeding and is not properly before the court. The court cannot consider this information and encourages the petitioner to seek legal advice.

As to the Petition filed by Taunya Brookshire:

Amended Petition-Will: A copy of the decedent’s alleged will and codicil were not attached to the amended petition. There is no April 20, 2020 will on file with the court and no codicil on file. It is unclear if the amended petition is referring to the copy of the trust instruments. The petitioner shall clarify.

LINE

9

**IN RE THE ESTATE OF ALEXANDER MAXIMOV, DECEASED
PR26-00114**

Evgeniya Agarkova’s Individually and as Guardian Ad Litem for Tatiana Maximova, Ex Parte Petition for Order For Family Allowance Before Inventory Filed

Opposition to Petition for Family Allowance Before Inventory Filed; Declaration of Rachel Libi Lew In Support of Opposition to Petition for Family Allowance

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act (By Evgeniya Agarkova)

Rachel Lew's Objection to Petition for Letters of Administration filed by Evgeniya Agarkova, Individually and as Guardian Ad Litem for Tatiana Maximova

Petition for Letters of Special Administration with General Powers and Authorization to Administer Under the Independent Administration of Estates Act (By Evgeniya Agarkova)

Evgeniya Agarkova's Individually and as Guardian Ad Litem for Tatiana Maximova, Ex Parte Petition for Order For Family Allowance Before Inventory Filed

Opposition to Petition for Family Allowance Before Inventory Filed; Declaration of Rachel Libi Lew In Support of Opposition to Petition for Family Allowance

PREGRANT ORDER

The court notes there are two petitions for administration and a petition for family allowance. All three petitions are filed by Petitioner, Evgeniya Agarkova. An Objection was filed by Rachel Lew to the Petition for General Administration and the Petition for Allowance. The following issues were identified for all of the pleadings on calendar.

The court on its own motion continues this hearing to August 20, 2026, at 9:30 a.m. in Department 22 so that all matters can be heard concurrently. Counsel and parties to appear at the continued hearing as required by Solano County Local Rule 7.9. Pending the continued hearing, the parties shall resolve the following issues as it relates to their petition or objection:

As to Petition filed by Evgeniya Agarkova for General Administration:

1. Petition, item, 3.h: Either (3) or (4) must be marked.
2. There is no Duties and Liabilities Form DE-147 on file and is required. (Prob. Code §8404.)

As to the Objection filed by Rachel Lew to the Petition for General Administration:

1. The Objector refers to a competing petition. However, there is no competing petition on file. The Objector shall explain.
2. The Objector refers to many documents that were not filed with the court. The petitioner shall provide supporting documents for the court's review and consideration.
3. It is unclear if the Objector is Objecting to the appointment of Sharon Duncan, a private professional fiduciary. The petitioner shall clarify.

As to Petition filed by Evgeniya Agarkova for Special Administration:

1. Petition, item, 3.h: Either (3) or (4) must be marked.
2. There is no Duties and Liabilities Form DE-147 on file and is required. (Prob. Code §8404.)

No Objection to the Petition for Special Administration

As to the Petition for Family Allowance:

The petitioner shall clarify if any rental income was received from the rental properties since the death of the decedent.

As to the Objection for Family Allowance:

The proof of service for the Objection indicates it was mailed to petitioner's counsel. However, there is no consent on the proper judicial council form by the petitioner or her counsel indicating consent to receive electronic delivery in the proceeding before the court. Therefore, notice is insufficient. (See Prob. Code §§ 1215(c)(1) and 8110.)

LINE

10

**IN RE THE ESTATE OF EDWARD J. EGGLINGER, DECEASED
PR26-00132**

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act

Objection to Danielle Lacampagne's Petition for Probate of Will and For Letters of Administration With Will Annexed

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court continued this matter from April 30, 2026 to allow the petitioner, Danielle Lacampagne to address the issues with her petition. No documents have been filed since the last hearing date. An Objection was filed to this petition and is on calendar for June 23, 2026.

A competing petition was filed by Patricia Passeltiner, which is before the court. No objections have been filed in response to her petition. However, there is an issue noted with her petition.

Therefore, the court on its own motion continues this hearing to June 23, 2026 at 9:30 a.m. in Department 22 so that all matters can be heard concurrently. Counsel and parties to appear at the continued hearing as required by Solano County Local Rule 7.9. Pending the continued hearing, the parties shall resolve the following issues with their petition or objection:

As to the Petition filed by Danielle Lacampagne:

1. Petition, item 2.d.(1): The petition states that bond should not be required for the reasons stated in item 3.e. However, no information was provided and the will waives bond only for the named executors in the will, not the petitioner.
2. Petition, item 3.g.(1)(d): The petitioner shall clarify if the alternate named executor is unwilling or unable to act, or is waiving appointment. An administrator with will annexed may not be appointed unless “all the executors named in the will have waived the right to appointment or are for any reason unwilling or unable to act.” (Prob. Code §8440.)
3. Petition, item 8: The petitioner must list herself, her relationship to the decedent, age and address. In addition, the petitioner shall provide a copy of the letters issued to her as temporary conservator of Barbara Mahoney for the court’s review and consideration and further clarify if she is seeking general letters of conservatorship of the person and estate. The petitioner shall also clarify if Barbara Mahoney is deceased.
4. The will offered for probate devises the estate to the trustee of “The Edward J. Egglinger Living Trust”. The trustee is not identified in item 8. The petitioner is to comply with Solano County Local Rules, Rule 7.51 and provide the name of any and all trustees and beneficiaries of the trust and give proper notice.
5. The petition proposes to admit the decedent’s pour over will into probate. However, the terms of the will devise the entire estate to the “The Edward J. Egglinger Living Trust.” The petitioners must file a copy of the trust, with all amendments, disclaimers and corrections, with the court under confidential cover. (Solano County Local Rules, Rule 7.51 c.)
6. The will presented was not witnessed and does not comply with the requirements of Probate Code § 6110(c). The petitioner shall present clear and convincing evidence that, at the time the decedent signed the will, the decedent intended the will to constitute their will. The Affidavit signed by the notary public who only met the decedent on the day they notarized the decedent’s will does not constitute clear and convincing evidence.

As to the Objection:

No issues noted.

As to the Petition filed by Patricia Passeltiner:

There is no proof of service filed with the court to show proper notice has been given to all persons entitled to notice.

LINE

11

**IN RE THE ESTATE OF JAMES L. BATES, DECEASED
PR26-00135**

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court continued this matter from April 27, 2026 to allow the petitioner to address the issues with the petition. Only one document has been filed by the petitioner since the last hearing date to address these issues.

The court on its own motion continues this hearing to August 18, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following unresolved issues:

1. Petition, item 3.f(2): The petition and the codicil attached refers to the to a will dated "July 22, 1992". However, there is no such copy of the will on file. The will provided is dated "March 8, 2007" which was revoked by the codicil.
2. There were no copies of the "July 22, 1992" trust and the amendment and restatement of the trust dated "October 3, 2014" on file. The petitioner must file a copy of the initial trust, with all amendments, disclaimers and corrections, with the court under confidential cover. (Solano Local Rules, Rule 7.51 c.)

LINE

12

**IN RE THE HANNEY LIVING TRUST DATED MAY 5, 2004
PR26-00262**

Petition to Determine Existence of Trust and Trust Assets [Probate Code §850]

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

LINE

13

IN RE THE ESTATE OF BARBARA ANN VARGAS, DECEASED
PR26-00263

Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

The court appoints Sean Vargas as administrator with full authority under the Independent Administration of Estates Act.

Bond is set at \$444,000. Letters shall not issue until bond is posted with the clerk. The petitioner is to apply sua sponte for an increase in bond in the event the aggregate value of the estate's assets exceeds \$444,000.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for November 9, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for August 9, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

14

IN RE THE ESTATE OF LESTER DALE KNAAK, DECEASED
PR26-00266

Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to August 19, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 1: The name of the newspaper for publication was not provided.
2. Petition, item 3.h: Either (3) or (4) must be marked.
3. The name of the Petitioner was not provided on item 10. of the Notice of Petition to Administer the Estate.
4. There is no proof of service on file to show proper notice has been given. (Prob. Code §8110.)
5. There is no proof of publication on file. (Prob. Code § 8124.)

LINE

15

IN RE THE ESTATE OF MARLENE Y. TENZLER, DECEASED
PR26-00275

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to August 26, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The original will is not on file with the court. (Prob. Code §8200.) If the petition for administration before the court is an ancillary estate, the petitioner must clarify and provide an authenticated copy of the will. (See Prob. Code §§12520-12524, et seq.)
2. Petition, item 8: The petitioner must list the trustee for the Todd Tenzler Special Needs Trust, their name and address and fiduciary capacity. Proper notice must also be given with proof filed with the court. In addition, there is an alternate named personal representative who was not listed and given notice of the proceeding. (Prob. Code §8110.)
3. The petition did not address whether the decedent's cross-outs would be valid. (*Estate of Martens* (1937) 10 C.2d 395, 398.) While the change of the alternate executor was changed, it is unclear if this was a codicil since there was no attestation clause. The petitioner shall clarify. If the petitioner intends to admit the change as a codicil it must be through a Proof of Subscribing Witness form (DE-131) to which is attached a photocopy

of the codicil per Probate Code § 8220, or, if no subscribing witness is available, through any alternate means permitted by the Probate Code. Court Staff also notes that the will was signed on January 6, 2024 and witnessed January 11, 2024.

LINE

16

IN RE THE ESTATE OF JUANITA CLARK, DECEASED
PR26-00278

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

The will of Juanita W. Clark dated June 30, 1982 is ordered admitted to probate.

The court appoints Vincent DeVon Smith and Gina LaVerne Smith aka Gina Jenkins as executors with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for November 9, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for August 9, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

17

IN RE THE ESTATE OF CHRISTOPHER G. KISTNER, DECEASED
PR26-00279

Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

The court appoints Martha Kistner as administrator with full authority under the Independent Administration of Estates Act.

Bond is set at \$565,000. Letters shall not issue until bond is posted with the clerk. The petitioner is to apply sua sponte for an increase in bond in the event the aggregate value of the estate's assets exceeds \$565,000.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for November 9, 2026, at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for August 9, 2027, at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

18

**IN RE THE ESTATE OF PUAL DIMITRI PULLIN, DECEASED
PR26-00280**

Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

The court appoints Michael Pullin as administrator with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for**

November 9, 2026 at 11:00 a.m. in Department 22. The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for August 8, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

19

IN RE THE ESTATE OF RICHARD D. JOHNSON, DECEASED
PR26-00287

Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to August 19, 2026, at 9:30 a.m. in Department 22. The court notes Letters of Special Administration were issued and were to expire on June 11, 2026. However, the court extends the Letters of Special Administration to the next hearing date with the same limited authority. Pending the continued hearing, the petitioner shall resolve the following issues as it relates to the general petition:

1. The Duties and Liabilities Form DE-147 is missing the phone number for the proposed personal representative.
 2. There is no proof of publication on file. (Prob. Code § 8124.)
 3. Petition, item 1: The Daily Journal is not a newspaper of general circulation for Vacaville. (See Prob. Code § 8120 et seq.) Publication must be done in a newspaper of general circulation.
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